Topic 17 — Language & Special Provisions

Covers syllabus (click to expand)

Official Language | Arts. 343–351 | 8th Schedule (अष्टम अनुसूची) | Classical languages | Linguistic minorities | 350A (अनु. 350A)–350B (अनु. 350B) | Official Language Commission | Official Languages Act | Special Officer for Linguistic Minorities | Part XXI | 371–371J | 370 & 35A (अनु. 35A) | J&K | Scheduled Areas | Tribal (आदिवासी) Areas | Fifth Schedule (5वीं अनुसूची) | Sixth Schedule (6वीं अनुसूची)

Sources baked in: Laxmikanth (Official Language + Special Provisions), Part XVII, Part X, Part XXI, 5th/6th Schedules, OL Act 1963/67, PIB classical-language notifications, UPPCS PYQs 2018–2025 **Weight:** ★★★ — English **15 years** (2023); Part XVII / Part X (2023); 8th **Bhojpuri out** (2025); 350B **7th not 9th** (2024); **371J** Hyderabad-Karnataka (2020); 6th Sch = **Tripura not Nagaland** (2019); PESA **1996** (2022) **Last verified:** September 2026 — Ghatnachakra Extra Drill (Official Language + Temporary / Transitional / Special Provisions) **Current Affairs:** Classical = **11** (3 Oct 2024); 370 inoperative + SC Dec 2023; J&K Assembly **2024**; Ladakh 6th-Schedule demand **not** granted

Current Affairs

- **2025** — Bhojpuri **not** in 8th; Nepali/Dogri/Bodo **are**.
- **2024** — 350B ≠ per State; ≠ 9th Amd; classical = **11** (3 Oct Cabinet); J&K Assembly polls; Ladakh (लद्दाख) 6th-Schedule demand pending.
- **2023** — English initially **15 years**; OL = Part **XVII**; SC upholds 370 orders; Part X = Scheduled/Tribal Areas.
- **2011** — 96th: Oriya → **Odia**.
- **1987** — **58th / 394A** Hindi authoritative text.
- **1949** — Hindi Diwas **14 Sep** (Munshi–Ayyangar).
- **2019** — 370 inoperative; J&K + Ladakh UTs **31 Oct**.
- **2020** — 371J = Hyderabad-Karnataka.
- **2022** — PESA year **1996**.

Frame

Part **XVII** (how the Union and States talk) + Parts **X** and **XXI** (Scheduled Areas / 371-series). 350B officer = **7th Amd**. 5th Sch vs 6th (AMTM). **370** inoperative **5 Aug 2019** (J&K + Ladakh UTs). PESA = Fifth-Schedule Gram Sabha (ग्राम सभा); **UP has no PESA**.

Part XVII map (343–351)

No "national language" in the Constitution. Union OL = Hindi in Devanagari + international form of Indian numerals.

- **343(1)** — Union OL = **Hindi in Devanagari**. Numerals = **international form of Indian numerals** (not Devanagari digits as the default).
- **343(2)** — English **may continue** for Union official purposes for **15 years** from commencement → clock in the text = **26 Jan 1965**.
- **343(3)** — Parliament **may** provide for English (and/or Hindi) **even after** 15 years — hook for the 1963 Act.
- **344** — Official Language Commission — see card below.
- **345** — State legislature **may** adopt **one or more** languages in use in the State **or Hindi** as the State OL. Until then, English continues in the State.
- **346** — official language for **Union–State** and **inter-State** communication. Two States may agree to use Hindi between them.
- **347** — if a demand is made, **President** may direct that a language spoken by a **section** of a State's population be officially recognised **throughout or in part of** that State.
- **348(1)** — **SC, every HC, Bills, Acts, ordinances, orders, by-laws** — **English**, until Parliament otherwise provides.
- **348(2)** — **Governor**, with **President's consent**, may authorise Hindi or a State OL in the **High Court** (not automatically in the SC).
- **348(3)** — State may use its OL for Bills/Acts, but an **English translation** published in the Gazette is the **authoritative** text.
- **349** — during the first **15 years**, a Bill touching 348 needs **President's prior sanction** after he has considered the **344** report.
- **350** — any person may submit a **representation for redress** to any Union or State authority in **any language used in the Union or the State**.
- **350A** — **7th Amd (1956)**. States / local authorities to endeavour **mother-tongue** instruction at the **primary** stage for linguistic-minority children. President **may direct**.
- **350B** — **7th Amd**. **One** Special Officer **for India** (not per State) — card below.
- **351** — Union's **duty** to **promote Hindi**, so it becomes a medium of expression for India's **composite culture**; draw from Hindustani (हिंदुस्तानी) and the **8th Schedule** (without interfering with other languages).

Constituent Assembly (संविधान सभा) fact:Munshi–Ayyangar formula (Sept **1949**) — Hindi in Devanagari as Union OL + English for **15 years**. Adopted (अंगीकृत) **14 September 1949** → **Hindi Diwas** every year. World Hindi Day = **10 January** (not the same).

How Parliament touches language (2018 trap — two lanes):

- **Ordinary law** — **343(3)** continue English · **120** language of Parliament · **210** State legislature · **348** language of SC/HC/Acts. **Simple** majority — **not** a 368 Bill. This is the usual UPPCS key.
- **Constitution Amd** — changing the **text of 343/344/351**. **368 special** (total membership (सदन की कुल सदस्य संख्या का) + 2/3 P&V). **Not** on the State-ratification list.

Neighbour — Hindi text of the Constitution:58th Amd (1987) inserted **394A**. President authenticates a Hindi translation; that Hindi text is **authoritative**. Original authentic text remains the **English** Constitution. Not a "national language" Amd.

Not in Part XVII (papers still mix them):

- **120** — business of Parliament in **Hindi or English**. A member who cannot may speak her **mother tongue** with the Speaker's / Chairman's permission. Parliament **may by law** otherwise provide.
- **210** — same scheme for a **State legislature** (Hindi / official language of the State / English).
- Three-language formula = **Kothari / NEP** education policy. **Not** an article. Hindi belt: Hindi + English + a modern Indian (preferably South). Non-Hindi: regional + Hindi + English.

PYQ — UPPCS Prelims 2023, Q8

The Constitution of India initially permitted the use of English language for all official purposes for a period of—

A. 5 years B. 10 years C. 15 years D. 20 years

Show answer

Ans: C — 15 years (343(2)). English is still there because of **343(3) + the 1963/67 Act**, not because the 15-year clock was extended in the Constitution.

PYQ — UPPCS Prelims 2023, Q1

Which among the following (Provision — Part of the Constitution) is **not** correctly matched?

A. The Union Territories — Part VIII B. The Scheduled and Tribal Areas — Part X C. Tribunals — Part XI D. Official Language — Part XVII

Show answer

Ans: C. Tribunals = **Part XIVA** (भाग XIVA). Official Language = **XVII** is the **correct** pair.

Official Language Commission (Art. 344)

Constitutional, time-bound, not a standing commission. Kher **1955**; then at ten years.

- When: President **shall** constitute it at **5 years** and again at **10 years** from 26 Jan 1950 → **1955** and **1960**. No third constitutional round.
- Who: Chairman + members representing the **8th Schedule** languages (President decides strength).
- Job: progressive use of **Hindi** · restrictions on **English** · form of **numerals** · any other matter the President refers.
- Report to the **President** → laid in **Parliament**.
- Parliamentary committee on the report: **30 MPs: 20 LS + 10 RS** examine and report to the President (**344(4)**).
- First Commission: **B.G. Kher**, 1955 (report 1956).
- First 344 committee: **Govind Ballabh Pant**.

> **Logic:** After 1960 the **Official Languages Act** carries the policy. Do not look for a 344 Commission every five years today.

Official Languages Act, 1963 (amended1967)

Anti-Hindi agitation (esp. Madras) → Parliament used **343(3)**.

- **English may continue** in addition to Hindi for Union official purposes and for Parliament **indefinitely** — no new 15-year bomb.
- 1967 amendment: reassurance after 1965 — English **shall** continue as long as non-Hindi States want it (the political fact).
- Authoritative text: Hindi translation of Central Acts, with English remaining authoritative unless provided.
- **s.4 Committee (1976)** — **Committee of Parliament on Official Language**: **30** (20 LS + 10 RS), chaired by the **Union Home Minister**. Standing. ≠ the 344 Commission.
- OL Rules **1976** classify States/UTs into **Regions A, B, C** for Hindi correspondence.
- **Department of Official Language**, **MHA**, created **June 1975**.
- Apex political body: **Kendriya Hindi Samiti (समिति)** — chaired by the **PM**.
- **Region A** — UP, Bihar, MP, Rajasthan, Haryana, HP, Uttarakhand (उत्तराखंड), Chhattisgarh, Jharkhand, Delhi, A&N. A→A **in Hindi**.
- **Region B** — Gujarat, Maharashtra, Punjab, Chandigarh, DNH & DD, **Goa**. Hindi **or** English; Hindi replies expected.
- **Region C** — all other States/UTs (South, East, NE). English; Hindi optional.

s.3 of the Act (meat): resolutions, general orders, rules, notifications, press communiqués, administrative reports of the Union — **Hindi and English**. Not “Hindi only after 1965.”

Eighth Schedule — 22 languages

The **amendment ladder + not-in list** is the language paper. **No “etc.”All 22 (learn the NOT-list harder than the list):** Assamese · Bengali · **Bodo** · **Dogri** · Gujarati · Hindi · Kannada · Kashmiri · **Konkani** · **Maithili** · Malayalam · **Manipuri** (मणिपुरी) · Marathi · **Nepali** · Odia · Punjabi · Sanskrit · **Santhali** · **Sindhi** · Tamil · Telugu · Urdu.

Original 14 (1950): Assamese · Bengali · Gujarati · Hindi · Kannada · Kashmiri · Malayalam · Marathi · Oriya · Punjabi · Sanskrit · Tamil · Telugu · Urdu.

What the 8th Schedule actually does: languages that **344** Commission members represent · languages **351** may draw on to enrich Hindi · UPSC (संघ लोक सेवा आयोग) / education optionals. **What it does not do:** make a language the Union OL · make it classical · make it a State OL (that is **345**).

92nd four (चातुर्याम) — extra facts:

- **Bodo** — in 8th. **Not** classical. Assam.
- **Dogri** — in 8th. J&K / HP. **Not** Bhojpuri.
- **Maithili** — in 8th (Bihar/UP belt). **Bhojpuri is not**.
- **Santhali** — in 8th. Script (लिपि) **Ol Chiki**. **Not** classical.

Amendment ladder (14 → 22):

- **21st, 1967 — Sindhi** → 15.
- **71st, 1992 — Konkani, Manipuri, Nepali** → 18.
- **92nd, 2003 — Bodo, Dogri, Maithili, Santhali** → **22**.
- **96th, 2011 — Oriya** → **Odia** (rename, **not** a 23rd language) → still 22.

Still 22. English is a **Union associate** language by **statute**, **not** an 8th Schedule language (8वीं अनुसूची भाषा).

NOT in the 8th Schedule (favourite wrong options):Bhojpuri · Rajasthani · English · Tulu · Khasi · Garo (गारो) · **Pali** (पाली) · **Prakrit** (प्राकृत).

PYQ — UPPCS Prelims 2025, Q102

Which of the following languages is/are NOT included in the Eighth Schedule of the Indian Constitution?

1. Nepali
2. Dogri
3. Bodo
4. Bhojpuri

A. 1 and 2 B. Only 4 C. 3 and 4 D. Only 1

Show answer

Ans: B — Only 4. Nepali = **71st**. Dogri + Bodo = **92nd**. Bhojpuri has been demanded, **never inserted**.

PYQ — UPPCS Prelims 2025, Q113

Match List-I with List-II and select the correct answer using the code given below the lists:

List-I (Schedule)

Code	Schedule
A	Seventh Schedule
B	Eighth Schedule
C	Ninth Schedule (नौवीं अनुसूची)
D	Tenth Schedule

List-II (Subject)

Code	Subject
1	Languages
2	Anti-defection
3	Union, State and Concurrent Lists
4	Validation of certain Acts and Regulations

> Note: Row order in the tables is **not** the answer.

A. 3, 1, 2, 4 B. 3, 1, 4, 2 C. 2, 3, 4, 1 D. 4, 2, 1, 3

Show answer

Ans: B — 3, 1, 4, 2 (Lists; Languages; Validation of Acts; Defection).

PYQ — UPPCS Prelims 2023, Q7

Which pair (Schedule — Subject) is **not** correctly matched?

A. Third — Oaths B. Eighth — Languages C. Ninth — Allocation of seats in the Council of States D. Tenth — Defection

Show answer

Ans: C. RS seats = **Fourth**. Ninth = **validation of Acts** (1st Amd). Eighth — Languages is **correct**.

PYQ — UPPCS Prelims 2022, Q89

Match List-I with List-II and select the correct answer using the code given below the lists:

List-I (Schedule)

Code	Schedule
A	Third Schedule
B	Fourth Schedule
C	Seventh Schedule
D	Eighth Schedule

List-II (Subject)

Code	Subject
1	Allocation of seats in Rajya Sabha
2	Forms of Oaths or Affirmations

Code	Subject
3	Languages
4	Union / State / Concurrent Lists

> Note: Row order in the tables is **not** the answer.

A. A-4, B-3, C-1, D-2 B. A-3, B-4, C-2, D-1 C. A-2, B-1, C-4, D-3 D. A-1, B-2, C-3, D-4

Show answer

Ans: C — A-2, B-1, C-4, D-3 (Oaths; RS seats; Lists; Languages).

Classical languages (executive, not constitutional)

Not an article. **Not** the 8th Schedule. Cabinet / Ministry of Culture notification after a Linguistics Experts Committee (now under **Sahitya (साहित्य) Akademi** (साहित्य अकादेमी)).

- **2004 — Tamil** (first).
- **2005 — Sanskrit**.
- **2008 — Kannada · Telugu**.
- **2013 — Malayalam**.
- **2014 — Odia**.
- **3 Oct 2024 — Marathi · Pali · Prakrit · Assamese · Bengali**.

Total = 11. Old six + five.

- Classical ≠ 8th Schedule: **Pali and Prakrit** are classical **and not** in the 8th. **Bodo / Santhali** are in the 8th **and not** classical.
- Hindi is **not** classical (as of 2024). Hindi is Union **OL** + 8th Schedule.
- Criteria do **not** sit in the Constitution. 2004 criteria (high antiquity **1500–2000 years**, ancient literature, original tradition, discontinuity) were **revised Jul 2024** by the LEC — knowledge-prose texts added; discontinuity **not** mandatory.
- What the tag buys: centres of excellence, professional chairs, international awards — **not** a new FR and **not** 8th Schedule entry.
- Nodal: **Sahitya Akademi** hosts the Linguistics Experts Committee (2024). **CIIL Mysore (मैसूर)** = Indian languages institute (not itself the notifying authority).
- Institutes (match): Classical **Tamil** — Chennai. **Telugu** — Nellore. **Kannada** — Central Institute at Mysuru belt. **Malayalam** — Tirur. **Odia** — Bhubaneswar. **Sanskrit** — Central Sanskrit University.

2004 criteria (still asked): (i) high antiquity of early texts **1500–2000 years** (ii) ancient literature as heritage (iii) original literary tradition (iv) distinct from the modern form. **Jul 2024 LEC** added knowledge/prose texts and said discontinuity is **not** mandatory — that is how **Pali / Prakrit / Marathi / Assamese / Bengali** cleared.

UP angle: Pali / Prakrit proposals named **UP** among the home States (with Bihar, MP).

Linguistic minorities & Art. 350B

Linguistic minority = a group whose language is **not** the official language of the **State** they live in (so Hindi-speakers can be a minority **outside** Region A). **Not** the same as NCM (असहयोग)'s **religious** six (Muslims, Christians, Sikhs, Buddhists, Parsis, Jains).

- **29** — any section with a distinct language / script / culture may **conserve** it (a Fundamental Right). Language rights start here.
- **350** — grievance representation in **any** language used in the Union or that State.
- **350A** — mother-tongue at **primary** stage; President may **direct** a State.
- **350B** — **one** Special Officer **for the whole of India**, appointed by the **President**. Investigate constitutional **safeguards**; report to the President → **Parliament** and the concerned **States**.

Operational title: **Commissioner for Linguistic Minorities** (first **1957**). Original HQ **Allahabad (Prayagraj (प्रयागराज))** — UP fact. Regional offices (classic Laxmikanth): **Belgaum, Chennai, Kolkata**. Now under **Minority Affairs** administratively. Don't freeze a pin-code as if it were in Art. 350B.

29 / 30: Constitution **never defines** "minority". It **uses** linguistic and religious minorities (**2019 A/R** — both true; R does not define A). **350A/350B** are the **linguistic** machinery; NCM is **religious**.

> **Logic:** "One officer **per State**" is **false**. "350B by the **9th** Amd" is **false** — **7th, 1956**.

PYQ — UPPCS Prelims 2024, Q142

Consider the following statements with reference to Special Officer for Linguistic Minorities:

1. In the Constitution, there is a provision for the post of Special Officer for Linguistic Minorities for every State.
2. A new Article 350B was added for this by the 9th Constitution Amendment Act.

A. Only 2 B. Neither 1 nor 2 C. Only 1 D. Both 1 and 2

Show answer

Ans: B — Neither.One Union officer. **7th** Amendment, not 9th (9th = **Berubari**).

UP Focus

Hindi official; Urdu second official (1989). OL Rules 1976 → UP is Region A.

- State OL = **Hindi** (Art. **345** + State Act).
- Second OL = **Urdu** — UP Official Language (Amendment) Act **1989**.
- OL Rules 1976: UP = **Region A** (A→A work in Hindi).
- 350B HQ (classic): Commissioner's original HQ **Allahabad** (इलाहाबाद).

- 8th Schedule demand: **Bhojpuri** (UP/Bihar) is the standing "not yet in" trap. **Maithili** (same belt) **is** in (92nd).
- Neighbour State: **Uttarakhand** (उत्तराखंड) = Hindi OL + **Sanskrit** second official. Do not write that for UP.

Part XXI — Temporary, Transitional & Special

- Part **XXI** spans Articles **369–392** and contains temporary, transitional and special provisions.
- **Special Category Status** was an administrative planning classification; it is not a status granted by Article 371.
- The designation **Sadr-e-Riyasat** was changed to **Governor** by the Jammu and Kashmir Constitution (Sixth Amendment) Act, **1965**.

Arts. 369–392. Heading is the trap: **370 was "temporary"**; **371–371J are "special"** and still live. **370** + **35A** inoperative **5 Aug 2019**; J&K and Ladakh are **UTs** (J&K has a legislature; Ladakh does not).

- **369** — temporary extra Union power on some State-List items — **expired**.
- **370** — J&K temporary provisions — **inoperative** since **6 Aug 2019** (C.O. 273).
- **371–371J** — special provisions for named States — **in force**.
- **372** — pre-Constitution laws continue until altered.
- **394** — commencement (26 Nov 1949 / 26 Jan 1950).

Article 370 (अनुच्छेद 370) & 35A — J&K

Temporary J&K article (now inoperative). Instrument of Accession **26 Oct 1947**. Delhi Agreement **1952**. J&K's own Constitution **26 Jan 1957**. Separate flag / constitution / "permanent resident" — **all gone** after 2019.

- What 370 did: J&K = special — only Accession subjects auto-applied; rest of the Constitution needed a **Presidential Order** with J&K government concurrence.
- **370(3)** — President could declare 370 inoperative — originally with the **J&K Constituent Assembly's** recommendation.
- **5 Aug 2019** — C.O. **272** applied (almost) the whole Constitution to J&K.
- **6 Aug 2019** — C.O. **273**: **370 ceases to operate** (inoperative, **not repealed** by a 368 Amd).
- **31 Oct 2019** — J&K Reorganisation Act: **J&K UT** (legislature) + **Ladakh UT** (no legislature).
- **35A** came by the **1954** Presidential Order under 370 — **not** a constitutional amendment. Defined **permanent residents**; reserved jobs, scholarships, land. **Died with 370**.
- *In Re: Article 370* (**11 Dec 2023**) — SC **upheld** the 2019 orders. 370 was **temporary**. Restore **statehood** "as soon as possible." Assembly polls followed **2024**.
- J&K OL Act **2020** — **Kashmiri, Dogri, Hindi, Urdu, English** — five official languages.

> **Logic:** "35A = an Amendment Act" is **false**. "370 was deleted from the book by the 103rd Amd" is

> **false**. “J&K is still a State with 370” is **false**.

Arts. 371–371J

Which article ↔ which State is the fact. Governor’s special responsibility is in the 371-series text itself.

- **371 — Maharashtra & Gujarat.** Governor: development boards for **Vidarbha, Marathwada**, rest of MH; **Saurashtra, Kutch**, rest of GJ; equitable funds.
- **371A — Nagaland** (**13th**, 1962). Parliament **cannot** touch Naga (नागा) religion/social practice, customary law, customary justice, **land & resources** unless the **Assembly** so decides. Governor: **law and order**.
- **371B — Assam** (**22nd**, 1969). Committee of MLAs from the **tribal (6th Schedule (6वीं अनुसूची)) areas**.
- **371C — Manipur** (**27th**, 1971). Hill Areas committee of MLAs; Governor reports to President.
- **371D — Andhra Pradesh & Telangana** (**32nd**, 1973; Telangana added 2014). Equitable **education + public employment**; local cadres. (AP Admin Tribunal history (इतिहास).)
- **371E — Andhra Pradesh.** Parliament **may** establish a **Central University** in AP.
- **371F — Sikkim** (**36th**, 1975). Statehood package; Assembly; one LS seat; old laws continue; Governor: peace + sections of people.
- **371G — Mizoram** (**53rd**, 1986). **371A-clone** for Mizo (मिज़ो) religion/social/customary/**land**. Assembly ≥ **40**.
- **371H — Arunachal Pradesh** (**55th**, 1986). Governor: **law and order** (discretion, after consulting CM). Assembly ≥ **30**.
- **371I — Goa** (**56th**, 1987). Assembly ≥ **30**. **Nothing else** — no land/custom clause.
- **371J — Karnataka** (**98th**, 2012). **Hyderabad-Karnataka / Kalyana-Karnataka** (Bidar, Kalaburagi, Yadgir, Raichur, Koppal, Ballari): development board, equitable funds, **local reservation** in education & State posts.

PYQ — UPPCS Prelims 2020, Q108

Which region of the country conferred special status under Article 371-J of the Constitution of India?

A. Nagaland B. Hyderabad (हैदराबाद) and Karnataka C. Maharashtra and Gujarat D. Ladakh

Show answer

Ans: B. 371A = Nagaland · 371 = MH/GJ · Ladakh has **no** 371 article.

Pair traps:371I Goa (only seat-floor) ≠ **371J Karnataka** (region + reservation). **371A Nagaland** ≠ Sixth Schedule. **371G Mizoram** ≈ 371A, **not** 371I.

Part X — Scheduled & Tribal Areas (244 / 244A)

2023 fact: Scheduled and Tribal Areas = **Part X** (correct pair). Tribunals = **XIVA**, not XI.

- **244(1) — Fifth Schedule**: Scheduled Areas + STs in States **other than** the 6th Schedule areas.

- **244(2) — Sixth Schedule**: tribal areas of **Assam, Meghalaya, Tripura, Mizoram (AMTM)**.
- **244A — 22nd Amd (1969)**: Parliament may create an **autonomous State** inside Assam. **Never used** as a living State (Meghalaya became a full State instead).
- **339** — Union direction on SA administration + ST welfare; **339(1)** = ad hoc commission (≠ NCST (राष्ट्रीय अनुसूचित जनजाति आयोग) **338A**).
- **275(1)** proviso — grants-in-aid for promoting welfare of STs / improving SA administration.
- **342** — ST **list**: President (after consulting Governor). **Having STs ≠ having a Scheduled Area**.

UP fact: Uttar Pradesh has **STs** on the 342 list. It has **no Fifth Schedule area**.

Fifth Schedule

10 States · TAC · PESA. President notifies Scheduled Areas.

- Who notifies SA: **President** (may increase / decrease / alter / make new — after consulting the Governor).
- **10 States:** AP · Telangana · Chhattisgarh · Gujarat · HP · Jharkhand · MP · Maharashtra · Odisha · Rajasthan.
- **Not:** UP · Bihar · WB · Karnataka · Tamil Nadu (नाडु) · Kerala · any **AMTM** State as a 5th-Schedule package.
- **Tribes Advisory Council:** ≤ **20** members; **¾** ST MLAs. States with STs but **no** SA may still get a TAC if the President so directs.
- Governor: special responsibility; **annual report** to the President. May make **regulations** for peace and good government: bar land transfer, regulate money-lending, **disapply or modify** a Parliamentary / State law in the SA.
- **PESA 1996** extends Part **IX** to **Fifth Schedule** areas (Bhuria). Year cue **1996** (2022). **Does not** touch the Sixth Schedule.

PESA = **Fifth Schedule + 1996**, not 1993/1995/Sixth. Gram Sabha pre-eminent in scheduled areas.

Sixth Schedule

AMTM · ADC · no PESA. Tribal areas of Assam, Meghalaya, Tripura, Mizoram.

- States: **AMTM only** — Assam, Meghalaya, Tripura, Mizoram.
- **Not:** Nagaland (**371A**) · Arunachal (**371H**) · Sikkim (**371F**) · Manipur hills (**371C**) · Ladakh (LAHDC is a **1995 statute**, not 6th).
- Body: **Autonomous District Council** / Regional Council.
- ADC strength: not more than **30** (4 nominated by Governor; rest elected); **5-year** term. **BTC** (Bodoland) is a later, **larger** special council.
- Law-making: land · forests **other than reserved** · jhum · village admin · inheritance · marriage · social customs · money-lending. Can run village courts; levy some taxes.
- Governor can create / redefine / dissolve districts; direct that a Parliament/State Act **not apply** or apply with exceptions.

- Assam ADCs: **Bodoland (BTC/BTR)** · **Karbi Anglong** · **Dima (डिमा) Hasao** (N. Cachar).
- Meghalaya: Khasi · Jaintia (जयंतिया) · Garo (almost the whole State).
- Tripura: TTAADC.
- Mizoram: **Chakma** · **Lai** · **Mara**.
- PESA / 73rd: Part IX (भाग IX) does **not** auto-apply (**243M**). **PESA ≠ Sixth Schedule**.

PYQ — UPPCS Prelims 2019, Q31

Sixth Schedule is applicable in which of the following States?

A. Tripura B. Sikkim C. Nagaland D. All of the above

Show answer

Ans: A — Tripura (AMTM). Sikkim = **371F**. Nagaland = **371A**.

PYQ — UPPCS Prelims 2022, Q67

When was the Panchayats (Extension to the Scheduled Areas) Act passed by the Indian Parliament?

A. 1998 B. 1996 C. 1995 D. 1993

Show answer

Ans: B — 1996. Fifth Schedule, not Sixth; not the 73rd's 1993 date.

Inner Line (neighbour, not a Schedule)

Bengal Eastern Frontier Regulation, 1873. ILP States: **Arunachal, Nagaland, Mizoram** + **Manipur (2019)**. **Not** Meghalaya. **Not** the Sixth Schedule. **Not** Ladakh (yet).

Fifth vs Sixth (one table)

	Fifth	Sixth
Article	**244(1)**	**244(2)**
Where	10 States (central/west/south-central belt)	**AMTM** only
Body	**TAC** (advisory)	**ADC** (law-making)
Who is boss	**Governor** + President	**ADC** + Governor's overlay
PESA	**Yes (1996)**	**No**
73rd auto-apply	No (needs PESA)	No (**243M**)

Mains link (one frame)

India did **not** pick a national language. **343** names a Union **official** language and a **15-year** English window; the **1963/67 Act** made the Union bilingual. The other half of this topic is **asymmetric federalism**: **370** was temporary and is now inoperative; **371–371J** still carve special boards, land-shields and seat-floors; **Fifth / Sixth** are two different tribal machines (TAC vs ADC). Close: **PESA 1996** is the 73rd's Fifth-Schedule extension — **not** the Sixth.